

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #1	CCRB Case #: 201806813	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 08/03/2018 9:28 PM	Location of Incident: Lewis Avenue and Jefferson Avenue	Precinct: 81	18 Mo. SOL 2/3/2020	EO SOL 2/3/2020	
Date/Time CV Reported Fri, 08/17/2018 10:42 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/17/2018 10:42 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Barounis	03718	956414	PBBN SU
2. SGT Adam Katrincic	03139	940328	PBBN SU

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Conway Hughes	19227	950603	PBBN SU

Officer(s)	Allegation	Investigator Recommendation
A.SGT Adam Katrincic	Abuse: Sergeant Adam Katrincic stopped § 87(2)(b)	
B.SGT Adam Katrincic	Abuse: Sergeant Adam Katrincic searched § 87(2)(b)	
C.POM Stephen Barounis	Abuse: Police Officer Stephen Barounis frisked § 87(2)(b)	

Case Summary

On August 17, 2018, § 87(2)(b) filed this complaint with the CCRB via the online website.

On August 3, 2018, at approximately 9:28pm, Sgt. Adam Katrincic, PO Stephen Barounis, and PO Conway Hughes of Patrol Borough Brooklyn North Specialized Units approached § 87(2)(b) who was on foot, in an unmarked vehicle. PO Hughes told § 87(2)(b) to approach the vehicle and § 87(2)(b) ran away. Sgt. Katrincic, PO Barounis, and PO Hughes chased after him and eventually stopped him (**Allegations A-Abuse of Authority:** § 87(2)(g) Sgt. Katrincic looked inside § 87(2)(b)'s duffel bag (**Allegation B-Abuse of Authority:** § 87(2)(g) PO Barounis then frisked § 87(2)(b) (**Allegation C-Abuse of Authority:** § 87(2)(g) § 87(2)(b) was not arrested or issued any summonses.

No video footage of this incident was identified.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Adam Katrincic stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped.

§ 87(2)(b) testified that on August 3, 2018, he exited the Utica Avenue subway station in Brooklyn and was walking home. At the time, he was carrying a black leather duffel bag. He estimated that the bag was two feet long and one foot tall. He had a large model portfolio book, a bottle of cologne, a t-shirt, and a toothbrush. He did not have anything else in the bag. The bag was approximately half full. § 87(2)(b) described the area he was walking in as dimly lit. As he was walking, an unmarked police vehicle approached him from behind. At the time, § 87(2)(b) did not realize that the vehicle was a police vehicle or that the occupants, PO Barounis, PO Hughes, and Sgt. Katrincic, were police officers. The officers were dressed in plainclothes. PO Hughes stated to § 87(2)(b) “yo, come here, let me ask you a question.” § 87(2)(b) ignored him and PO Hughes asked again. PO Hughes then opened the car door and § 87(2)(b) immediately ran away. § 87(2)(b) testified that he ran away because he believed he was being robbed. § 87(2)(b) ran for approximately two to three blocks before hearing police sirens. He then stopped, thinking he was safe at that point. PO Barounis and Sgt. Katrincic exited the same vehicle he had run from and told him to get onto the ground. § 87(2)(b) complied and PO Barounis held § 87(2)(b)'s hands behind his back (Board Review 01).

On February 12, 2019, § 87(2)(b) was called and he stated explicitly that he did not have an umbrella in his duffel bag during this incident.

Stop Report § 87(2)(b) states that § 87(2)(b) was stopped for suspicion of criminal possession of a weapon. The report indicates that § 87(2)(b) was observed walking briskly and going in between cars. It also states that he was carrying a weighted bag that appeared to have a weapon-shaped object inside (Board Review 02).

Sgt. Katrincic testified that he observed § 87(2)(b) walking on the sidewalk at a fast pace. § 87(2)(b) looked back over his shoulder towards the officers. Sgt. Katrincic testified that § 87(2)(b) seemed scared based on these observations. § 87(2)(b) was holding a black leather

duffel bag. The bag was approximately one and one-half feet long and one foot tall. The bag had a bulge on the side that appeared to be a cylinder shape. Sgt. Katrincic estimated that it was shorter than the length of the bag. A curved, dark colored, handle was sticking out of the top of the bag. During his sworn statement, Sgt. Katrincic was presented with the Stop report detailed above. At that point, he recalled that the bag appeared to be weighted because § 87(2)(b)'s arm was tense while holding it. Sgt. Katrincic testified that he believed § 87(2)(b) was carrying a firearm in the bag. He believed this based on the bulge and the curved handle, which he believed might be the butt of the gun. Sgt. Katrincic did not know what type of firearm it might be. Sgt. Katrincic testified that he made the decision to stop § 87(2)(b) based on his suspicion that § 87(2)(b) might be in possession of a firearm. As the officers approached in their vehicle, PO Hughes identified them as police and asked § 87(2)(b) to stop. After briefly ignoring PO Hughes, § 87(2)(b) ran away. PO Barounis and Sgt. Katrincic pursued in their vehicle until § 87(2)(b) stopped running. The officers then approached § 87(2)(b) (Board Review 03).

PO Barounis and PO Hughes articulated similar observations to Sgt. Katrincic. Both PO Barounis and PO Hughes testified that the bag appeared weighted in part because the bottom of the bag was sagging. They did not observe any other bulges on the bag. Both testified that they observed a curved handle sticking out of the bag and PO Barounis documented the presence of the umbrella in his memo book (Board Review 04, 05).

Flight, combined with other specific circumstances indicating that the suspect may be engaged in criminal activity, could provide the predicate necessary to justify pursuit. People v. Holmes, 81 N.Y.2d 1056 (1993) (Board Review 11). When a police officer reasonably suspects that a person has committed, is committing, or is about to commit, a felony, the officer can stop that person. People v. De Bour, 40 N.Y.2d 210 (1976) (Board Review 07).

§ 87(2)(g)
[REDACTED]

Allegation (B) Abuse of Authority: Sergeant Adam Katrincic searched § 87(2)(b)
Allegation (C) Abuse of Authority: Police Officer Stephen Barounis frisked § 87(2)(b)

It is undisputed that § 87(2)(b) was frisked, and that his duffel bag was searched.

§ 87(2)(b) testified that, while he was face down on the ground with PO Barounis holding § 87(2)(b)'s hands behind his back, the officers told him that they wanted to see what was in the bag. § 87(2)(b) told them they could look inside because he wanted to prove there was nothing illegal inside. Sgt. Katrincic looked through the bag. PO Barounis then patted under § 87(2)(b)'s arms, in his groin area, and down his legs. The officers then stood § 87(2)(b) up, took down his information, then let him go (Board Review 01).

The Stop report indicates that § 87(2)(b) was frisked. The reason provided was “object observed suspected of being a weapon.” The report also indicates that § 87(2)(b) was searched, with the provided reason being consent (Board Review 02).

Sgt. Katrincic testified that he asked § 87(2)(b) if he could look in the bag. He could not recall his wording of the request. He also could not recall § 87(2)(b)'s positioning at this point. § 87(2)(b) said that Sgt. Katrincic could look in the bag. Sgt. Katrincic testified that he asked to look in the bag because of his earlier observations of the bulge and handle. He could not recall if he still observed the bulge in the bag or the handle sticking out at this point. Sgt. Katrincic could not recall if he felt the outside of the bag prior to opening it. Sgt. Katrincic looked inside the bag. Inside was a textbook and a collapsible umbrella with a dark curved handle. Sgt. Katrincic testified that he searched the bag because § 87(2)(b) had consented to him doing so and for no other reason. Sgt. Katrincic testified that § 87(2)(b) was frisked for the officers' safety but did not observe anything that led him to believe that § 87(2)(b) might have a weapon on his person (Board Review 03).

PO Barounis testified that he approached § 87(2)(b) who was on his stomach. He frisked § 87(2)(b)'s whole waistband. PO Barounis did not frisk anywhere else on § 87(2)(b). PO Barounis testified that he frisked § 87(2)(b) for the officers' safety and to make sure that § 87(2)(b) did not have a weapon on his person. PO Barounis testified that he suspected § 87(2)(b) may have had a weapon based on his earlier observations of the weighted bag and the handle sticking out. PO Barounis testified that he did not suspect § 87(2)(b) of having a weapon specifically on his person and did not make any observations to suggest that this might be the case. While § 87(2)(b) was still on the ground, Sgt. Katrincic asked if they could look in the duffel bag. § 87(2)(b) said that they could. At this point, PO Barounis was standing over § 87(2)(b) to ensure he did not run away again. Sgt. Katrincic looked into the bag and found a large textbook and a collapsible umbrella with a curved handle. The handle of the umbrella was still sticking out of the bag when the officers approached § 87(2)(b) (Board Review 04).

Sgt. Katrincic could not recall what position § 87(2)(b) was in at the time he provided consent. § 87(2)(g)

A police officer may frisk a subject if he reasonably believes the subject to be armed. A police officer may search a subject that he has probable cause to believe is in possession of contraband People v. De Bour, 40 N.Y.2d 210 (1976) (Board Review 07). During a level three encounter (Terry Stop), an officer may seek consent, however it must be voluntarily given. NYPD Patrol Guide, 212-11 (Board Review 06). One of the exceptions to the requirement of probable cause to search is voluntary consent. Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. An important factor the court considers is whether the subject is in custody. Custody does not preclude voluntariness but it engenders an atmosphere of authority contradictory to consent. The court notes several other factors that they considered in evaluating consent. They include: the number of officers present, the age and experience with law enforcement of the subject, and whether the subject was cooperative with the officers prior to and after the alleged consent was given. People v. Gonzalez, 39 N.Y.2d 122 (1976) (Board Review 08).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 09).
- Sgt. Katrincic has been a member-of-service for 13 years and has been a subject in eight CCRB complaints and 15 allegations, none of which were substantiated. § 87(2)(g)
- PO Barounis has been a member-of-service for four years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- On October 15, 2018, this case was sent to mediation and on December 26, 2018, the case was returned to the investigation as the complaint was no longer eligible for mediation.
- A FOIL request for a Notice of Claim was submitted to the New York City Office of the Comptroller on February 5, 2019. The results of this request will be added to the casefile upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date